

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOSEPH CUOMO,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, DETECTIVE
HUMBERTO KIBEL - TAX ID # 942004, and
POLICE OFFICERS JOHN DOES #1-6 (whose names
are fictitious as the true names are unknown to plaintiff),

Defendant(s).
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates
Kings County as the
place of trial.

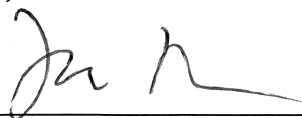
The basis of venue is:
Location of occurrence

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint

Dated: New York, New York
September 22, 2016

TALKIN, MUCCIGROSSO & ROBERTS, LLP



JONATHAN ROBERTS, ESQ.

Attorneys for Plaintiff(s)

JOSEPH CUOMO

40 Exchange Place, 18th Floor
New York, New York 10005
(212) 482-0007
Our File No.: 03255B001

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10007

DETECTIVE HUMBERTO KIBEL - TAX ID # 942004
c/o New York City Police Department
1 Police Plaza
New York, NY 10007

DETECTIVE HUMBERTO KIBEL - TAX ID # 942004
Narcotics Borough Brooklyn South
860-A Remsen Avenue
Brooklyn, NY 11236

POLICE OFFICERS JOHN DOES #1-6
c/o New York City Police Department
1 Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOSEPH CUOMO,

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THE CITY OF NEW YORK, DETECTIVE
HUMBERTO KIBEL - TAX ID # 942004, and
POLICE OFFICERS JOHN DOES #1-6 (whose names
are fictitious as the true names are unknown to plaintiff),

**VERIFIED
COMPLAINT**

Defendant(s).

-----X

Plaintiff, **JOSEPH CUOMO**, by his attorneys, **TALKIN, MUCCIGROSSO & ROBERTS, LLP**, complaining of the Defendants, **THE CITY OF NEW YORK, DETECTIVE HUMBERTO KIBEL - TAX ID # 942004, and POLICE OFFICERS JOHN DOES #1-6 (whose names are fictitious as the true names are unknown to plaintiff)**, respectfully alleges the following upon information and belief:

1. At all times hereinafter mentioned, Plaintiff, **JOSEPH CUOMO**, was and still is a resident of the County of Kings, in the City and State of New York.
2. At all times hereinafter mentioned, Defendant, **CITY OF NEW YORK**, was and is a municipal corporation duly existing under the laws of the State of New York.
3. At all times hereinafter mentioned, Defendant, **CITY OF NEW YORK**, its agents, servants and/or employees operated, maintained and controlled the Police Department of the City of New York, all police officers thereof, including those police officers named herein as defendants.

4. On September 18, 2015, Plaintiff duly served a Notice of Claim upon the City of New York.
5. Plaintiff duly served a Notice of Claim upon the City of New York in the manner and mode required by law.
6. That the statutory 50-H hearing was held on April 25, 2016, and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof.
7. That the Plaintiff has complied with all conditions precedent applicable to the instant action.
8. That this action falls within one or more of the exceptions of the CPLR §1602.

AS AND FOR A FIRST CAUSE OF ACTION

9. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “8” above as if fully set forth herein.
10. On June 24, 2015, at approximately 8:00 p.m. while Plaintiff was lawfully walking along Bath Avenue and Bay 41st Street, in the County of the Kings, in the City and State of New York. Plaintiff was falsely arrested without provocation or justification, by POLICE OFFICERS JOHN DOES #1-6 (whose names are fictitious as the true names are unknown to plaintiff), employed by Defendant, THE CITY OF NEW YORK.
11. On September 1, 2015, at approximately 6:00 p.m. while Plaintiff was lawfully in front of his residence at 50 Bay 46th Street, in the County of the Kings, in the City and State of New York. Plaintiff was falsely arrested without provocation or justification, by DETECTIVE HUMBERTO KIBEL - TAX ID # 942001, and POLICE OFFICERS JOHN

DOES #1-6 (whose names are fictitious as the true names are unknown to plaintiff), employed by Defendant, THE CITY OF NEW YORK.

12. As result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.
13. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff, repeats and reiterates each and every allegation contained in paragraphs numbered “1” through “13” above as if fully set forth herein.
15. On June 24, 2015, at approximately 8:00 p.m. while Plaintiff was lawfully walking along Bath Avenue and Bay 41st Street, in the County of the Kings, in the City and State of New York. Plaintiff was wrongfully detained and arrested without provocation or justification, by DETECTIVE HUMBERTO KIBEL - TAX ID # 942001, and POLICE OFFICERS JOHN DOES #1-6 (whose names are fictitious as the true names are unknown to plaintiff), employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, did wrongfully detain and imprison the Plaintiff without probable cause, without an arrest warrant and in bad faith.
16. On September 1, 2015, at approximately 6:00 p.m. while Plaintiff was lawfully in front of his residence at 50 Bay 46th Street, in the County of the Kings, in the City and State of New York. Plaintiff was wrongfully detained and arrested without provocation or justification, by DETECTIVE HUMBERTO KIBEL - TAX ID # 942001, and POLICE

OFFICERS JOHN DOES #1-6 (whose names are fictitious as the true names are unknown to plaintiff), employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, did wrongfully detain and imprison the Plaintiff without probable cause, without an arrest warrant and in bad faith.

17. At the aforesaid time and place, Defendants, wrongfully arrested and forcibly detained, restrained and maliciously prosecuted the Plaintiff.
18. Plaintiff was subsequently arrested and was charged criminal possession of a controlled substance. Plaintiff was forced to make numerous Court appearances and to defend himself against these charges.
19. On August 13, 2015, the criminal charges against the Plaintiff were dismissed for the first arrest which occurred on June 24, 2015.
20. On November 16, 2015, the criminal charges against the Plaintiff were adjourned in contemplation of dismissal for the second arrest which occurred on September 1, 2015.
21. In commencing and continuing said wrongful detainment and imprisonment, Defendants caused Plaintiff to be wrongfully arrested and detained in violation Penal Laws of the State of New York and his constitutional rights.
22. At the time of the unlawful imprisonment, Plaintiff had not committed any illegal act.
23. At the time of Plaintiff unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.
24. Plaintiff had not given Defendants probable cause to believe that they had committed any illegal acts.

25. At the time of Plaintiffs' unlawful imprisonment, Defendants knew or should have known through exercise of proper procedure and reasonable investigation, that the aforementioned imprisonment was without justification.
26. Defendants, acted in bad faith and without justification in committing the aforesaid detention of Plaintiff.
27. Defendants willfully and wrongfully accused the Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.
28. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear humiliation, loss of freedom and damage to his reputation and standing within his community.
29. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

30. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "29" above as if fully set forth herein.
31. On June 24, 2015, at approximately 8:00 p.m. while Plaintiff was lawfully walking along Bath Avenue and Bay 41st Street, in the County of the Kings, in the City and State of New York. Plaintiff was falsely arrested and wrongfully detained without provocation or justification, by DETECTIVE HUMBERTO KIBEL - TAX ID # 942001, and POLICE OFFICERS JOHN DOES #1-6 (whose names are fictitious as the true names are unknown to plaintiff), employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees.

32. On September 1, 2015, at approximately 6:00 p.m. while Plaintiff was lawfully in front of his residence at 50 Bay 46th Street, in the County of the Kings, in the City and State of New York. Plaintiff was falsely arrested and wrongfully detained without provocation or justification, by DETECTIVE HUMBERTO KIBEL - TAX ID # 942001, and POLICE OFFICERS JOHN DOES #1-6 (whose names are fictitious as the true names are unknown to plaintiff), employed by Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees.
33. Defendant, THE CITY OF NEW YORK, by and through its agents, servants and/or employees, negligently and carelessly performed their duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have under similar circumstances.
34. As a result of Defendants' negligence Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
35. As a result of the forgoing, Plaintiff, demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

36. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "35" above as if fully set forth herein.
37. On June 24, 2015, at approximately 8:00 p.m. while Plaintiff was lawfully walking along Bath Avenue and Bay 41st Street, in the County of the Kings, in the City and State of New

York, Defendants, THE CITY OF NEW YORK, DETECTIVE HUMBERTO KIBEL - TAX ID # 942001, and POLICE OFFICERS JOHN DOES #1-6 (whose names are fictitious as the true names are unknown to plaintiff), did improperly, violently, forcibly and without warrant right or privilege arrested Plaintiff.

38. On September 1, 2015, at approximately 6:00 p.m. while Plaintiff was lawfully in front of his residence at 50 Bay 46th Street, in the County of the Kings, in the City and State of New York, Defendants, THE CITY OF NEW YORK, DETECTIVE HUMBERTO KIBEL - TAX ID # 942001, and POLICE OFFICERS JOHN DOES #1-6 (whose names are fictitious as the true names are unknown to plaintiff), did improperly, violently, forcibly and without warrant right or privilege arrested Plaintiff.
39. Plaintiff was handcuffed, falsely arrested and detained without provocation or justification by Defendants.
40. Plaintiff was arrested and detained against his will.
41. Said detention was without warrant, probable cause and/or justification.
42. The actions of Defendant, CITY OF NEW YORK, its agents, servants and/or employees heretofore described constitute unlawful arrest and detention and imprisonment and were designed to and did cause a violation of the Plaintiffs' Constitutional Rights as guaranteed under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution and the Constitution of the State of New York.
43. Defendants violated Plaintiffs' civil rights by subjecting him to an illegal search and seizure in violation of the 42 U.S.C. § 1983, of the U.S. Constitution and the Constitution of the State of New York.

44. The actions of Defendants, heretofore described constitute unlawful detention, imprisonment were designed to and did cause a violation of the Plaintiffs' Constitutional Rights as guaranteed under 42 U.S.C. § 1983 and United States Constitution, Fourth and Fourteenth and the Constitution of the State of New York.
45. That the conduct and action of Defendants, acting in concert and under color of State Law in detaining Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without justification, and was designed to and did cause a violation of Plaintiffs' Constitutional Rights as guaranteed under 42 U.S.C. §1983 and United States Constitution, Fourth and Fourteenth and the Constitution of the State of New York.
46. Defendants deprived Plaintiff of his liberty in violation of his civil and constitutional rights as guaranteed under 42 U.S.C. § 1983 and United States Constitution, Fourth and Fourteenth Amendments and the Constitution of the State of New York.
47. Defendants, were in the vicinity of Bath Avenue and Bay 41st Street, in the County of the Kings, in the City and State of New York, and without warrant and without probable cause in violation of Plaintiffs' civil rights and constitutional rights as set forth in the Fourth Amendment of the United States Constitution.
48. Defendants, were in the vicinity of 50 Bay 46th Street, in the County of the Kings, in the City and State of New York, and without warrant and without probable cause in violation of Plaintiffs' civil rights and constitutional rights as set forth in the Fourth Amendment of the United States Constitution.
49. The actions taken by Defendant, CITY OF NEW YORK's agents, servants and/or employees were undertaken under color of law and would not have existed but for said

Defendant, CITY OF NEW YORK's agents, servant and/or employees using their official power.

50. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer a violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
51. As a result of Defendant's impermissible conduct, Plaintiff demand judgment against Defendants in a sum of money which exceed the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

52. Plaintiff repeats and reiterates each and every allegation contained in paragraphs number "1" through "51" above as if fully set forth herein.
53. The supervisors and policy making officers of Defendant, CITY OF NEW YORK and its Police Department as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.
54. Defendant, CITY OF NEW YORK, has failed to properly train and effectively train their employees with regard to the proper constitutional and statutory limits on the exercise of their authority, and such failure continues to their day.
55. Defendant, CITY OF NEW YORK, hired and retained in its employ certain police officers, with knowledge that said officers had vicious propensities and were therefore unfit to be police officers.
56. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear,

humiliation, loss of freedom and damage to his reputation and standing within his community.

57. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

58. Plaintiff repeat and reiterate each and every allegation contained in paragraphs numbered “1” through “67” above as if fully set forth.
59. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers with knowledge that said police officers lacked the experience to be employed by the aforementioned Defendants, and therefore were unfit to be police officers.
60. Defendant, CITY OF NEW YORK, hired and retained in its employ police officers with the knowledge that said police officers lacked deportment to be employed by the aforementioned Defendant, and therefore, were unfit to be officers.
61. Defendant, CITY OF NEW YORK, hired and retained in its employ, police officers with that said officers had vicious propensities and were therefore unfit to be officers.
62. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
63. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR AN SEVENTH CAUSE OF ACTION

64. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered “1” though “63” above as if fully set forth.
65. Defendants’ conduct toward Plaintiff was so outrageous and shocking that it exceeds all reasonable bounds of decency tolerated by the average member of the community.
66. Defendants acted with desire to cause Plaintiff distress or acted under circumstances known to them which made it substantially certain that they would cause such distress to said Plaintiff.
67. Defendants acted with utter disregard of the consequences of their actions.
68. As a result of the foregoing, Plaintiff was caused to suffer a violation of his civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom and damage to his reputation and standing within his community.
69. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, and requests compensatory and punitive damages in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, an award for reasonable attorney’s fees, cost and disbursements of their action; and such other and further relief as their Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
September 22, 2016



JONATHAN ROBERTS

ATTORNEY'S VERIFICATION

JONATHAN ROBERTS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **TALKIN, MUCCIGROSSO & ROBERTS, LLP**, attorneys of record for Plaintiff,

I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The verification is made by me because Plaintiff does not presently reside in the county wherein I maintain my offices.

Dated: New York, New York
September 21, 2016



JONATHAN ROBERTS